MODULE 10 – LAWS AND REGULATIONS RELATED TO CYBER SECURITY AND DATA PRIVACY

Main Questions

Question 1 (C6) (SM) (7M) (Dec 2024 PQ)

What is Data Protection under the Information Technology Act, 200? Throw light on the data protection law as prevalent in India today.

Answer

Data Protection Laws refers to the set of privacy laws, policies and procedures that aim to minimise intrusion into one's privacy caused by the collection, storage, etc. of personal data. Personal data generally refers to the information or data which relate to a person who can be identified from that information or data whether collected by any Government or any private organization or an agency.

a) India currently is not having a separate data protection law.

b) Section 43A & Section 72A were inserted in the IT Act through the Information Technology (Amendment) Act, 2008 and the Central Government, notified the Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011.

c) The right to privacy in India was declared a fundamental right by the Hon'ble Supreme Court of India on August 24, 2017.

d) Section 43A of the IT Act explicitly provides that whenever a corporate body possesses or deals with any sensitive personal data or information, and is negligent in maintaining a reasonable security to protect such data or information, which thereby causes wrongful loss or wrongful gain to any person, then such body corporate shall be liable to pay damages to the person so affected.

e) Section 72A provides for the penalty for disclosure of information in breach of lawful contract and any person may be liable to penalty which may extend to ₹ 25 lakhs in case disclosure of information is made in breach of lawful contract.

Question 2 (C7) (SM)

What are the obligations of the corporate body collecting data from individuals?

Answer

Corporate Bodies collecting data from individuals must follow few rules laid down in Information Technology Act, 2000. The two major obligations are:

(i) Privacy Policy

a) Body corporates that collect sensitive personal data must have a privacy policy.

b) Policy must be easily accessible to everyone by publishing on its website.

c) The policy must contain details regarding, what kind of personal information is being collected & why, and what security practices are taken to keep it safe and confidential.

(ii) Data Collection Guidelines

a) Obtain consent from data providers.
b) Collect data only for lawful and necessary purposes.
c) Use data only for stated purposes and retain it only as long as necessary.
d) Inform data providers about the collection, purpose, and recipients.
e) Allow data providers to review and correct their data.
f) Ensure data security.
g) Designate a Grievance Officer with contact details on the website.

Question 3 (C9, C10 & C11) (7M) (SM) (MQP Dec 2024 Set 2) (MQP Dec 2023)

Classify the major categories of cyber-crimes and summarize them with examples.

Answer

Cybercrime involves criminal activities where computers or networks are used as tools, targets, or places of criminal activity. Its unique nature, without geographical boundaries and often with anonymous perpetrators, poses significant threats to governments, businesses, and individuals.

Cyber-crimes can be basically divided into three major categories:

(i) Cyber-crimes against persons are:

a) Cyber Stalking - Using technology like the internet, email, or phones to threaten and create fear.
b) Obscenity - Sharing indecent or prohibited material, especially child pornography.
c) Defamation - Lowering someone's dignity by hacking their account and sending vulgar emails.
d) Hacking - Unauthorized access to a computer system, often destroying data and programs.
e) Cracking - Breaking into a computer system without permission and tampering with data.
f) Spoofing - Sending emails that misrepresent their origin, often used for spam and identity theft.
g) Carding - Using fake debit and credit cards to steal money from bank accounts.
h) Fraud - Stealing passwords and data with the intent to cheat or deceive.
i) Threat - Using technology to threaten someone's life or safety.

(ii) Cyber Crimes Against Property

a) IPR Violation - Infringing on intellectual property rights like software piracy and copyright violations.
b) Squatting - Competing for the same domain name, often by registering it first or using a similar one.
c) Vandalism - Deliberately damaging or destroying data and network services.
d) Hacking - Unauthorized access to computer systems, leading to data loss.
e) Virus - Programs that spread and damage data on computers and networks.
f) Trespass - Accessing someone's computer without permission, but not altering or damaging data.

(iii) Cyber Crimes Against Government

a) Terrorism - Using the internet to conduct attacks that threaten national security.
b) Warfare - Politically motivated hacking to damage or spy, similar to traditional warfare.
c) Piracy - Distributing pirated software to destroy government data and records.
d) unauthorized Information - It is very easy to access any information by the terrorists with the aid of internet and to possess that information for political, religious, social, ideological objectives.

Question 4 (C12) (June 2023 PQ) (3M)

List 5 Cyber Crimes under IPC and Special laws.

Answer

The following are the Cyber Crimes under IPC and Special laws:

a) Sending threatening messages by email
b) Defamatory messages by email
c) Forgery of electronic records
d) Bogus websites, cyber frauds
e) Email spoofing
f) Web-Jacking
g) Email Abuse

Question 5 (C12)

List down the Cyber Crimes under IT Act, 2000

Answer

The following are the Cyber Crimes under the Information Technology Act, 2000:

a) Tampering with Computer source documents
b) Hacking with Computer systems, Data alteration
c) Publishing obscene information
d) Unauthorized access to protected system
e) Breach of Confidentiality and Privacy
f) Publishing false digital signature certificates

Question 6 (C14) (7M) (Dec 2023 PQ) (MQP June 2024)

The Business Intelligence has some process of works. Elucidate that process of works.

Answer

Business Intelligence (BI) is a technology-driven process that helps organizations analyse data and provide actionable insights for decision-making. It involves collecting data from internal and external sources, preparing it for analysis, and creating visualizations, dashboards, and reports.

The process of Business Intelligence works by the following steps:

a) Data Collection and Storage: BI data is stored in data warehouses or smaller data marts. This data can include both historical information and real-time data from various source systems.

b) Data Preparation: Raw data from different sources is integrated, consolidated, and cleansed using data integration and quality management tools. This ensures accurate and consistent information for analysis.
c) Data Analysis: The prepared data is analysed using analytical querying, where BI tools run queries to extract meaningful insights.
d) Distribution: Key performance indicators (KPIs) and other analytical findings are distributed to business users through reports, dashboards, and visualizations.
e) Decision-Making: The insights and information gathered from the analysis are used to influence and drive strategic and tactical business decisions.

Question 7 (C16) (7M) (June 2024 PQ) (MQP June 2024)

What do you mean by "Business Intelligence" in the context of Cyber Security? What are its benefits?

Answer

Business Intelligence (BI) is a technology-driven process that helps organizations analyse data and provide actionable insights for decision-making. It involves collecting data from internal and external sources, preparing it for analysis, and creating visualizations, dashboards, and reports.

Benefits of Business Intelligence

a) Speed up and improve decision-making
b) Optimize internal business processes
c) Increase operational efficiency and productivity
d) Spot business problems that need to be addressed
e) Identify emerging business and market trends
f) Develop stronger business strategies
g) Drive higher sales and new revenues
h) Gain a competitive edge over rival companies.

Question 8 (C16 & 17) (7M) (MQP Dec 2024 Set 1) (MQP June 2025)

Explain the types of business intelligence tools and applications and benefits of business intelligence.

Answer

The list of BI technologies that are available to organizations includes the following:

a) Ad Hoc Analysis – the process of writing and running queries to analyze specific business issues on temporary basis.
b) Online Analytical Processing (OLAP) – Analysing data in multiple dimensions to handle complex questions and calculations.
c) Mobile BI - Using BI apps on smartphones and tablets, showing simple charts and key metrics.
d) Real-time BI - data is analyzed as it's created, collected and processed to give users an up-to-date view of business operations, customer behaviour, financial markets and other areas of interest

e) Operational Intelligence (OI) - Also called operational BI, this is a form of real-time analytics that delivers information to managers and frontline workers in business operations.
f) Open Source BI (OSBI) Business intelligence software that is open source typically includes two versions: a community edition that can be used free of charge and a subscription-based commercial release with technical support by the vendor.
g) Embedded BI - These tools put BI and data visualization functionality directly into business applications. That enables business users to analyze data within the applications they use to do their job.
h) Collaborative BI - This is more of a process than a specific technology which involves the combination of BI applications and collaboration tools to enable different users to work together on data analysis and share information with one another.
i) Location Intelligence (LI) - This is a specialized form of BI that enables users to analyze location and Geographic data, with map-based data visualization incorporated.

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